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GARCIA v. LA MIRADA POST ACUTE, LLC ET AL.

CASE NO.: 24NWCV00331

HEARING: Tuesday, September 8, 2026, at 9:30 AM

I.

Defendants SUN MAR MANAGEMENT SERVICES and SUN
MERIDIAN MANAGEMENT SERVICES, LLC's Demurrer is OVERRULED.

II.

Defendants SUN MAR MANAGEMENT SERVICES and SUN
MERIDIAN MANAGEMENT SERVICES, LLC's Motion to Strike is DENIED.

Defendants to Answer within 10 days.

Moving Party to give notice.

Background

On January 31, 2024, Plaintiff MARCOS GARCIA filed this
action against Defendants LA MIRADA POST ACUTE, LLC ("Sunny") and DOES 1
through 200, inclusive.

On April 6, 2026, Plaintiffs MARCOS GARCIA, by and through
his Successor-in-Interest, Perla Garcia; PERLA GARCIA; LUZ MARIA GARCIA; MAIRA

GARCIA; and DANIEL GARCIA ("Plaintiffs") filed the operative Second Amended Complaint. ("SAC").

Plaintiffs SAC alleges the following causes of action:

1. Elder Abuse;
2. Negligence;
3. Violation of Residents Rights; and
4. Wrongful Death

On April 28, 2026, Defendants SUN MAR MANAGEMENT SERVICES INC. (DOE 1) and SUN MERIDIAN MANAGEMENT SERVICES, LLC (DOE 2) (collectively, "Moving Defendants") filed the instant demurrer with motion to strike.

First Cause of Action – Elder Abuse

To plead elder abuse, the plaintiff must allege "facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care [citations]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [citations]; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citations]." (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406-07.) "The plaintiff must also allege . . . that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering." (Id. at 407.) "[T]he facts constituting the neglect and establishing the causal link between the neglect and the injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims." (Id. (quoting Covenant

Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.)

Under Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, the California Supreme Court explained that Welf. & Inst. Code, § 15600 et seq. “does not apply unless the defendant health care provider had a substantial caretaking or custodial relationship, involving ongoing responsibility for one or more basic needs, with the elder patient.” (Winn, supra, 63 Cal.4th at p. 152.) The court explains the legislatures’ intent to distinguish between “the underlying concept of neglect... with the sort of conduct triggering more conventional tort liability” only allowing causes of action sounding in neglect for “certain situations [that] place elders and dependent adults at heightened risk of harm, and [therefore require] heightened remedies relative to conventional tort remedies.” (Winn, supra, 63 Cal.4th at p. 159–160.) Specifically, the court states that a relationship contemplated by the code requires “the existence of a robust caretaking or custodial relationship—that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder’s basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance.” (Winn, supra, 63 Cal.4th at p. 158.)

“It must be determined, on a case-by-case basis, whether the specific responsibilities assumed by a defendant were sufficient to give rise to a substantial caretaking or custodial relationship. The fact that [another caregiver] provided for a large number of decedent’s basic needs does not, in itself, serve to insulate defendants from liability under the Elder Abuse Act if the services they provided were sufficient to give rise to a substantial caretaking or custodial relationship.”² (Oroville Hospital v. Superior Court (2022) 74 Cal.App.5th 382, 405.)³

Plaintiffs’ SAC pleads Decedent MACROS GARCIA (“Decedent”) was under the care and treatment of Defendant Sunny from September 30, 2022, through June 24, 2023. (SAC ¶ 23.) Plaintiffs SAC alleges Defendant Sunny ““was not acting independently in the planning, staffing, budgeting and overall operation of the facility,” and that Sun Mar and Sun Meridian “dictated and controlled” those decisions, exercising “direct and pervasive control” over

staffing levels, resource allocation, training protocols, census targets, and cost-containment measures. (SAC ¶ 7.)

Plaintiffs further allege these management entities, acting as agents/alter egos and joint venturers, imposed unrealistically low staffing budgets, creating circumstances where “basic custodial care, such as monitoring residents for safety measures to prevent falls and other injuries, was routinely and foreseeably neglected.” (SAC ¶ 8.)

Plaintiffs allege Moving Defendants provided “care or services” to dependent adults and the elderly, including Decedent, and were “care custodians” of Decedent as defined in Welfare and Institutions Code §15610.17. (SAC ¶ 30.) Decedent was unable to provide for his own basic needs and was dependent on them for meeting his basic needs such as nutrition, hydration, as well as medical care and health services, assistance and monitoring with feeding, the provision of safety and assistance devices to prevent accidents, and the implementation of interventions to prevent skin breakdown and infections. (SAC ¶ 24.)

Contrary to Moving Defendants’ position, Plaintiffs directly allege Moving Defendants were “care custodians” and provided care or services to Decedent by assuming operational control of staffing, budgeting, training, and day-to-day policies that directly determined whether Decedent’s basic needs were met.

The facts here are distinguishable from Oroville Hospital, where the Court found that a defendant “providing in-home nursing for wound care did not establish they had ‘assumed significant responsibility for attending to one or more of those basic needs of the elder or dependent adult that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance.’ [Citation.]” (Oroville Hospital, *supra*, 74 Cal.App.5th at 405 [citing Winn, *supra*, 63 Cal.4th at 155, 158].)

The Oroville Hospital court noted that “[u]nlike a basic need an able-bodied and fully competent adult would be capable of managing without assistance, such as eating, taking medicine, or using the restroom, decedent’s wound care required competent professional medical attention.” (Id.)

Here, Plaintiffs alleged Decedent was unable to provide for his basic needs and depended on Moving Defendants for nutrition, hydration and medical services.

Lastly, the SAC alleges Decedent suffered harm due to Moving Defendants failure to provide basic custodial care. (SAC ¶ 67.)

The Court finds Plaintiff properly pleads a claim for elder abuse. Indeed, for purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967).

Plaintiffs demonstrated Moving Defendants were (1) care custodians who provided care or services to Decedent (SAC ¶ 30.); (2) knew Decedent's physical condition made hm unable to provide for his own basic needs (SAC ¶ 34.); (3) neglected to provide medical care for Decedent's physical and mental health needs by failing to take all the necessary steps to properly care for him. (SAC ¶ 35.)

Moving Defendants' Demurrer is OVERRULED as to Plaintiffs' Elder Abuse Cause of Action.

Third Cause of Action – Violation of Resident Rights

Health and Safety Code section 1430 provides that “[a] current or former resident or patient of a skilled nursing facility . . . may bring a civil action against the licensee of a facility who violates any rights of the resident or patient as set forth in the Patients Bill of Rights in Section 72527 of Title 22 of the California Code of Regulations, or any other right provided for by federal or state law or regulation.” (Health & Safety Code, § 1430(b).) “The licensee shall be liable for the acts of the licensee’s employees.” (Id.)

Here, Plaintiffs fail to plead that Moving Defendants are licensed facilities.

Instead, Plaintiffs allege Moving Defendants were alter egos of licensed facility Defendant Sunny. To invoke the alter ego doctrine, the plaintiff must plead unity of interest and ownership and that an inequity will result if the corporate entity is treated as the sole actor. (See *Vasey*

v. California Dance Co. (1977) 70 Cal.App.3d 742, 749.) Factors to consider in applying the doctrine include the commingling of funds and other assets, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, inadequate capitalization, and disregard of corporate formalities. (Sonora Diamond Corp. v Superior Court (2000) 83 Cal.App.4th 523, 538-39.)

Courts liberally apply the alter ego doctrine when the equities and justice of the situation call for it rather than restricting it to technical requirements of pleading and procedure. (First Western Bank & Trust Co. v. Bookasta (1968) 267 Cal.App.2d 910, 915.) It is essential principally that a showing be made that there is a unity of interest and that permitting the fiction of corporate separate existence is unjust. (Id.)

Plaintiffs plead unity of interest through the following facts:

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Common control and decision-making, wherein SUN MAR and SUN MERIDIAN dictated SUNNY's staffing budgets, labor allocations, and cost-containment directives

.

Centralized financial control, including the imposition of fixed labor cost ceilings that SUNNY lacked discretion to exceed even when resident acuity demanded increased staffing;

.

Common officers, directors, and/or managing agents, who exercised control over both SUNNY and the SUN MANAGEMENT DEFENDANTS and made unified operational decisions affecting patient safety

.

Use of SUNNY as an operating shell, whereby SUN MAR and SUN MERIDIAN controlled the day-to-day operational policies while SUNNY functioned as the nominal licensee absorbing regulatory risk and

.

Disregard of corporate separateness, including centralized policies, standardized staffing matrices, and uniform budget enforcement across facilities managed by SUN MAR and SUN MERIDIAN, including SUNNY.

(SAC ¶¶ 11(a)-(e).)

In this case, the Court finds that the allegations to be sufficient at the pleading stage. Paragraph 11(a)-(e) lack of separateness, common ownership, use of Defendant Sunny as an operating shell, and centralized financial control.

Accordingly, Moving Defendants' Demurrer is OVERRULED as to Plaintiffs' Violation of Resident Rights cause of action.

Motion to Strike

A motion to strike lies either when (1) there is "irrelevant, false or improper matter inserted in any pleading"; or (2) to strike any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP §436.)

Plaintiff must allege specific facts showing that the defendant's conduct was oppressive, fraudulent, or malicious. (Smith v. Sup. Ct. (1992) 10 Cal.App.4th 1033, 1041-42.)

Allegations that a defendant exhibited a conscious disregard for the safety of others are sufficient to show malice. (Taylor v. Sup. Ct. (1979) 24 Cal.3d 890, 895-896.) To justify an award of punitive damages on this basis, Plaintiff must establish that the Defendant was aware of the probable consequences of his conduct. (Ibid.) There must be pleaded "specific facts from which the conscious disregard of probable injury to others may reasonably be inferred." (Dawes v. Sup. Ct. (1980) 111 Cal.App.3d 82, 90.)

Allegations of damages without allegations of fact to support them are conclusions of law. Shopoff & Cavallo LLP v. Hyon (2008) 167 Cal.App.4th 1489, 1509.) Mere allegations of wrongful, willful, knowing conduct are conclusory and insufficient to plead punitive damages. (G.D. Searle & Co. v. Superior Court (1975)

49 Cal.App.3d 22, 32.)

When the defendant is a corporation, “the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.” (Wilson v. Southern California Edison Company, (2015) 234 Cal.App.4th 123, 164; see Civ. Code § 3294(b).) That requirement can be satisfied “ ‘if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” ’ [Citation.]” (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (Morgan).) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

Plaintiffs allege Mar and Sun Meridian “dictated and controlled” Defendant Sunny, exercising “direct and pervasive control” over staffing levels, resource allocation, training protocols, census targets, and cost-containment measures. (SAC ¶ 7.) Plaintiffs further allege Defendants imposed unrealistically low staffing budgets, creating circumstances where “basic custodial care, such as monitoring residents for safety measures to prevent falls and other injuries, was routinely and foreseeably neglected.” (SAC ¶ 8.)

Plaintiffs also allege Moving Defendants knew of substandard conditions and regulatory deficiencies repeatedly issued by the California Department of Public Health against SUNNY and despite this knowledge, “ratified, endorsed, and perpetuated the very practices that placed vulnerable residents such as GARCIA at grave risk.” (SAC ¶ 9.)

Finally, Plaintiffs allege Defendants “by and through their corporate officers, directors, and managing agents, presently unknown to Plaintiff and according to proof at the time of trial, ratified the misconduct alleged herein in that they were aware of the understaffing of their hospitals and skilled nursing facilities.” (SAC ¶ 17.)

The Court finds these allegations to be sufficient to demonstrate reckless disregard.

Conclusion

Defendants' Demurrer is OVERRULED.

Defendants' Motion to Strike is DENIED.